

Tentative Rulings for May 7, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

25CECG00868	<i>Celestina Stewart v. General Motors LLC</i> is continued to Thursday, June 18, 2026, at 3:30 p.m. in Department 501.
-------------	---

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 501

Begin at the next page

(46)

Tentative Ruling

Re: **Amber Myrick v. Clawson Motorsports**
Superior Court Case No. 24CECG02398

Hearing Date: May 7, 2026 (Dept. 501)

Motion: by Plaintiffs Amber and Wynonna Myrick to Compel
Defendant Polaris Industries, Inc.'s Further Responses to:
(1) Special Interrogatories, Set One, and
(2) Request for Production of Documents, Set One.

Tentative Ruling:

To grant the motion to compel further responses to Special Interrogatories, Set One, in part. Defendant Polaris Industries, Inc., ("Polaris") is directed to provide further responses to Special Interrogatory Nos. 33, 43, 51 and 52. To deny as to Special Interrogatory Nos. 44 and 46.

To grant the motion to compel further responses to Request for Production of Documents, Set One, in part. Polaris is directed to provide further responses and documentation for Request Nos. 61 and 70. To deny as to Request No. 73.

To deny the request for sanctions.

If oral argument is timely requested, such argument will be entertained on Tuesday, May 12, 2026, at 3:30 p.m. in Department 501.

Explanation:

Motion to Compel Further Responses to Special Interrogatories, Set One

Plaintiffs Amber Myrick and Wynonna Myrick ("plaintiffs") move for an order compelling further responses from Polaris to special interrogatory Nos. 33, 43, 44, 46, 51 and 52.

Request No. 33: State the number of 2022 POLARIS RZR 200 vehicles that have been involved in ROLLOVERS, per YOUR records.

Request No. 43: State the number of SAFETY COMPLAINTS you have investigated regarding the 2022 POLARIS RZR 200.

Request No. 51: IDENTIFY each lawsuit (including case number and case name) brought against YOU from 2015 to the present in which an RZR MODEL was involved in a ROLLOVER.

Request No. 52: IDENTIFY each lawsuit (including case number and case name) brought against YOU from 2015 to the present in which a driver or occupant of an RZR MODEL alleged an injury.

Polaris¹ submits that the requests are irrelevant, overbroad, and not proportional to the needs of the case. Polaris also argues that plaintiffs cannot establish substantial similarity. Plaintiffs counter that relevancy has been established, as the defect at issue is present on other models of the RZR and is not limited to the specific vehicle involved in the incident causing injury (i.e. other RZR models are designed with the same arm ejection zone defect). This is relevant information because plaintiffs' are alleging that the vehicle's defect caused and/or contributed to the injury and was a defect known to Polaris, at least in part because it was present on other models of the RZR.

It does appear that the information sought is relevant to the action. In regard to whether it is overbroad and proportional, plaintiffs have limited the scope of the inquiries to approximately the past 10 years (i.e. 2015). The standard of substantial similarity used by Polaris, as pointed out by plaintiffs and conceded by Polaris, goes towards the admission of evidence rather than its discoverability. The court is inclined to find the agreed upon timeframe narrowing the scope of the inquiries to be sufficient to keep the inquiries proportional to the case.

Request Nos. 33 and 43 are made in regard to the same model vehicle as involved in the present action. The motion is granted as to these two requests. Request No. 51 is made as to the same type of incident that caused injury in the present action. The motion is granted as to this request. However, Request No. 52 seeks information as to any injury from any model of the RZR vehicle. This is overbroad, and the request is denied.

Special Interrogatory Nos. 44 and 46 were not raised or discussed during the parties' multiple meet and confer attempts. (See generally Kim Decl.) Plaintiffs do not refute this. Accordingly, the motion to compel further responses to Special Interrogatory Nos. 44 and 46 is denied.

Motion to Compel Further Responses to Request for Production, Set One

Plaintiffs move for an order compelling further responses to request for production of documents category nos. 61, 70 and 73.

Request No. 61: All DOCUMENTS referencing any ROLLOVERS involving RZR MODELS at any time from 2015 to the present.

Request No. 70: All DOCUMENTS referencing EXTREMITY injuries sustained by occupants of RZR MODELS during ROLLOVERS from 2015 to the present.

Request No. 73: All DOCUMENTS referencing SAFETY CONCERNS pertaining to potential EXTREMITY injuries of occupants of RZR MODELS from ROLLOVERS from 2015 to the present.

¹ Polaris's requests for judicial notice are denied.

As discussed above, plaintiffs' position is that other RZR models are designed with the same arm ejection zone defect as present on the RZR model at issue here, and the same defect can and has produced the same type of injury, regardless of the RZR model. The injury here was sustained as a result of a rollover, and the alleged defect of the vehicle is purported to have caused or contributed to plaintiff's injury. The engineering and design differences described by Polaris in its opposition do not appear to distinguish the models from this specific defect, other than to say some netting was added.

The information sought appears to be relevant to the case, and has been limited in scope to approximately the past 10 years (i.e. 2015). Request Nos. 61 and 70 are made regarding rollovers and extremity injuries sustained during rollovers within the limited timeframe. The motion as to these two requests is granted. However, Request No. 73 is made as to safety concerns pertaining to potential injuries, not any specific [types of] injuries or incidents causing injury. This inquiry is overbroad and not proportional to the case, and accordingly the motion is denied as to this request.

Sanctions

Plaintiff seeks monetary sanctions under Code of Civil Procedure sections 2023.010; 2023.030; 2030.300, subdivision (d); and 2031.310, subdivision (h). The court finds that neither party acted without substantial justification, and therefore that the imposition of sanctions would be unjust. The request is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/4/2026.
(Judge's initials) (Date)

(03)

Tentative Ruling

Re: **Campas v. American Honda Motor Co., Inc.**
Case No. 24CECG04008

Hearing Date: May 7, 2026 (Dept. 501)

Motion: by Defendant for Summary Adjudication

Tentative Ruling:

To deny defendant's motion for summary adjudication of the third cause of action.

If oral argument is timely requested, such argument will be entertained on Tuesday, May 12, 2026, at 3:30 p.m. in Department 501.

Explanation:

Defendant moves for summary adjudication of the third cause of action under Civil Code section 1793.2, subdivision (b), contending that plaintiff cannot prevail on his claim because no single attempt to repair plaintiff's vehicle took more than 30 days. However, defendant's interpretation of section 1793.2(b) is not supported by the plain language of the statute.

Under section 1793.2(a), “[w]here those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days.” (Civ. Code, § 1793.2, subd. (b).)

“Section 1793.2 incorporates several aspects of the Act's comprehensive regulation of express warranties for consumer goods. This statute requires manufacturers of consumer goods sold in California to arrange for sufficient service and repair facilities to carry out the terms of warranties (§ 1793.2, subd. (a)); it sets a time limit for the repair of consumer goods (§ 1793.2, subd. (b)); it delineates rules for delivering nonconforming goods for service and repair (§ 1793.2, subd. (c)); and it requires a manufacturer to replace the consumer good or reimburse the buyer if the manufacturer or its representative is unable to repair the consumer good after a reasonable number of attempts (§ 1793.2, subd. (d)).” (*National R.V., Inc. v. Foreman* (1995) 34 Cal.App.4th 1072, 1077–1078, citation omitted.)

“Section 1793.2 governs the duties of a manufacturer making an express warranty. One of those duties appears in section 1793.2, subdivision (b). It provides that where repair of consumer goods is necessary ‘because they do not conform with the applicable express warranties,’ the goods must be repaired “so as to conform to the applicable warranties within 30 days.’ (We will refer to this as the 30-day repair requirement, or

section 1793.2(b).)" (*Ramos v. Mercedes-Benz USA, LLC* (2020) 55 Cal.App.5th 220, 224–225.)

In *Ramos*, the Court of Appeal affirmed the trial court's judgment finding that defendant manufacturer had violated section 1793.2(b) even though the car was not in for service for more than 30 days on any single repair attempt, and the manufacturer failed to repair the defect so as to conform to the warranty within 30 days. However, the *Ramos* court also found that the plaintiff was not entitled to replacement of the car or restitution of all amounts he paid to lease the car, as the defect did not substantially impair the use, value, or safety of the car. (*Ramos v. Mercedes-Benz USA, LLC*, *supra*, at p. 228.)

On the other hand, the *Ramos* decision does not address the issue of whether a plaintiff could state a claim under section 1793.2(b) where the car was never out of service for more than 30 days on any single repair attempt. The court was only concerned with the type of remedies that plaintiff could obtain where plaintiff only proved up a technical violation under section 1793.2(b), but there was no evidence that the defect substantially impaired the use, value, or safety of the car. (*Id.* at p. 228.) Defendant did not appeal from the jury's finding that it violated the 30-day repair requirement under section 1793.2(b), so the Court of Appeal did not consider the issue of whether there must be a single attempt to repair that goes on for more than 30 days in order to violate the statute. Cases are not authority for propositions that they do not consider. (*McConnell v. Advantest America, Inc.* (2023) 92 Cal.App.5th 596, 611.) Thus, plaintiff's citation to *Ramos* is not dispositive of the question of whether a plaintiff can prevail on a section 1793.2(b) claim where their car was never in for service for more than 30 days on any single repair attempt.

Defendant cites to *Schick v. BMW of North America, LLC* (9th Cir. 2020) 801 F. App'x 519, where the Ninth Circuit Court of Appeals held that, "[u]nder California Civil Code § 1793.2(b), BMW was obligated to 'service[] or repair[] [the car's windows] so as to conform to the applicable warranties within 30 days.' Schick and Huber claim that BMW violated this statutory provision because the car windows did not work for a total of more than 30 days. However, under any reasonable reading of the statute, § 1793.2(b) requires only that BMW complete any single repair attempt within 30 days. Because BMW never took longer than 30 days to complete any single repair attempt, this claim fails as a matter of law." (*Id.* at p. 521.)

Defendant also cites to the United States District Court's decision in *Dean-Adolph v. Mercedes Benz USA, LLC* (C.D. Cal. 2022) 2022 WL 815856, which followed *Schick*'s holding that, in order to state a claim under section 1793.2(b), a single repair attempt must take defendant more than 30 days to complete. (*Id.* at * 3.)

However, federal court decisions are not binding on California courts as to matters of California law, so this court is not obligated to follow the federal courts' decisions here. Instead, the court must decide for itself whether the plain language of the statute allows plaintiff to state a claim under section 1793.2(b) where no single attempt to repair took more than 30 days.

Also, there is another recent decision of the United States District Court, *Guzetta v. Ford Motor Company* (C.D. Cal. 2023) 2023 WL 5207429, which held that the plaintiffs could state a violation of section 1793.2(b) even where no single repair attempt took

more than 30 days. “Ford contends that because no single repair visit took more than 30 days, the Guzzetta Plaintiffs cannot state a claim for violation of Section 1793.2(b) for failure to service or repair the Vehicle within thirty days. ... Although the Guzzetta Plaintiffs have not alleged that any single repair *attempt* took more than 30 days, this does not render the FAC deficient. Rather, the statute requires that the Vehicle ‘shall be serviced or repaired so as to conform to the applicable warranties within 30 days.’ The plain language of the statute does not state, as Ford argues, that it is sufficient to *attempt* service or repair, be unsuccessful in doing so, and return the Vehicle within 30 days.” (*Id.* at *6–7, citations omitted.) “The Court therefore finds that the Guzzetta Plaintiffs properly pleaded a violation of CAL. CIV. CODE § 1793.2(b) for failure to service or repair the Vehicle within thirty days.” (*Id.* at *7.)

Thus, there is a split of authority in the federal courts as to whether section 1793.2(b) requires a single attempt to repair the vehicle that lasts for more than 30 days, or multiple attempts that extend over the course of 30 days. Again, section 1793.2(b) states, “Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days.” (Civ. Code, § 1793.2, subd. (b).) Examining the plain language of the statute, there is nothing in section 1793.2(b) that requires there to be a single attempt to repair that takes more than 30 days in order to violate the statute. The statute only requires the goods to be “serviced or repaired so as to conform to the applicable warranties within 30 days.” Thus, a manufacturer might make a single attempt or multiple attempts to repair or service a product, and if it fails to repair the product so that it conforms to the warranty within 30 days, then it would have violated section 1793.2(b).

There also does not appear to be any policy reason why the Legislature would limit the scope of the statute to only a single repair attempt over 30 days, as opposed to multiple attempts that stretch over 30 days. In fact, if defendant’s interpretation were correct, then the manufacturer could make many unsuccessful repair attempts over the course of months or years without violating the statute, as long as no single attempt took more than 30 days. Such a result would not be consistent with the purpose of the statute, which is to protect consumers and ensure that manufacturers make timely and good faith efforts to repair their products under warranty.

Therefore, the court intends to find that section 1793.2(b) does not require a plaintiff to prove that there was a single repair attempt that took more than 30 days. A series of repair attempts that cumulatively cover more than 30 days would be enough to show a violation of the statute. Here, there is no dispute that defendant attempted to repair plaintiff’s vehicle on multiple occasions over the course of more than 30 days.² Thus, defendant has not met its burden of showing that it is entitled to summary adjudication of plaintiff’s third cause of action, and the court will deny defendant’s motion for summary adjudication.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

² Defendant has objected to plaintiff’s declaration submitted in opposition to the motion. The court intends to overrule the objections.

adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/6/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Alarcon, Sr. v. Monroe et al.***
Superior Court Case No. 18CECG00898

Hearing Date: May 7, 2026 (Dept. 501)

Motion: by Plaintiff for Reconsideration

Tentative Ruling:

To deny.

If oral argument is timely requested, such argument will be entertained on Tuesday, May 12, 2026, at 3:30 p.m. in Department 501.

Explanation:

Plaintiff Frank Alarcon, Sr., by and through his Successor-in-Interest Frank Alarcon, Jr. ("plaintiff") seeks reconsideration of a prior order granting summary judgment pursuant only to Code of Civil Procedure section 1008. Code of Civil Procedure section 1008 states, in pertinent part:

When an application for an order has been made to a judge, or to a court, and ... granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based on new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. (Code Civ. Proc. § 1008, subd. (a), emphasis added.)

Section 1008 further states that "[t]he party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (*Ibid.*)

Facts which the party seeking reconsideration was aware of at the time of the original ruling are not new, or different. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 689-690.) To otherwise seek reconsideration based on new facts, the moving party must provide a satisfactory explanation for the failure to produce that evidence at an earlier time. (*Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) Some courts have summarized the above as a required showing of "changed circumstances" (see *Wilson v. Science Applications Int'l Corp.* (1997) 52 Cal.App.4th 1025, 1033), i.e., information that the moving party could not, with reasonable diligence, have discovered or previously produced (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213).

Plaintiff fails to demonstrate any basis for reconsideration. None of the evidence submitted in support of the motion, which consisted only of two statements to attach

exhibits, demonstrates new or different facts, circumstances or law, to reconsider the prior order. (See *generally* Moving Papers.) Moreover, at issue was plaintiff's desire to make oral arguments. On the face of that relief sought, there are no discernable new facts or changed circumstances that would support reconsideration. Accordingly, the motion for reconsideration is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/6/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Ramos v. De La Cruz**
Superior Court Case No. 24CECG02608

Hearing Date: May 7, 2026 (Dept. 501)

Motion: Motion to Set Aside

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

If oral argument is timely requested, such argument will be entertained on Tuesday, May 12, 2026, at 3:30 p.m. in Department 501.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT on 5/6/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Clifton v. Flores et al.**
Superior Court Case No. 24CECG04918

Hearing Date: May 7, 2026 (Dept. 501)

Motion: Motion to Seal

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

If oral argument is timely requested, such argument will be entertained on Tuesday, May 12, 2026, at 3:30 p.m. in Department 501.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT on 5/6/2026.
(Judge's initials) (Date)